

Deliberation SAN-2023-013 of September 18, 2023

National Commission on Informatics and Liberties

Nature of the deliberation: Sanction

Legal status: In effect

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Deliberation of the restricted formation no SAN-2023-013 of September 18, 2023 concerning the company SAF LOGISTICS

The National Commission on Informatics and Liberties, convened in its restricted formation composed of Mr. Philippe-Pierre CABOURDIN, Vice-President, Ms. Anne DEBET and Ms. Christine MAUGÜÉ, and Messrs. Alain DRU and Bertrand du MARAIS, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 on the protection of personal data and the free movement of such data;

Considering Directive 2002/58/EC of the European Parliament and of the Council of July 12, 2002 concerning the processing of personal data and the protection of privacy in the electronic communications sector;

Considering Law no. 78-17 of January 6, 1978 relating to data processing, files, and freedoms, notably its articles 20 and following;

Considering Decree no. 2019-536 of May 29, 2019 amended, taken for the application of Law no. 78-17 of January 6, 1978 relating to data processing, files, and freedoms;

Considering Deliberation no. 2013-175 of July 4, 2013 adopting the internal regulations of the National Commission on Informatics and Liberties;

Considering requests no. 20013079 and no. 20013664;

Considering Decision no. 2021-221C of June 29, 2021, of the President of the National Commission on Informatics and Liberties to charge the Secretary General to carry out or have carried out a mission to verify the compliance of personal data processing implemented by the company SAF LOGISTICS or on its behalf, with the provisions of Regulation (EU) 2016/679 mentioned above and Law no. 78-17 of January 6, 1978 as amended and, where applicable, the provisions of articles L. 251-1 and following of the Internal Security Code;

Considering the decision of the President of the National Commission on Informatics and Liberties designating a rapporteur before the restricted formation, dated June 3, 2022;

Considering the report of Ms. Sophie LAMBREMON, rapporteur, notified to the company SAF LOGISTICS on February 21, 2023;

Considering the written observations submitted by the company SAF LOGISTICS on April 11, 2023;

Considering the rapporteur's response to these observations, notified on May 11, 2023, to the company's counsel;

Considering the written observations submitted by the company SAF LOGISTICS on June 12, 2023;

Considering the other documents in the file;

Present at the meeting of the restricted formation on July 13, 2023:

- Ms. Sophie LAMBREMON, commissioner, heard in her report;

As representatives of the company SAF LOGISTICS: [...]

The company SAF LOGISTICS having spoken last;

The restricted formation adopted the following decision:

I. Facts and Procedure

1. The company SAF LOGISTICS (hereinafter "the company"), established at LA GRANDE ARCHE 1 PARVIS DE LA DEFENSE PAROI NORD in PUTEAUX (92800), engages in air freight transport from China to Europe. The company was created on April 12, 2017. It employed, in 2020, [...] employees. It achieved, in 2020, a turnover of approximately [...], with a net result of approximately [...] euros; in 2021, a turnover of [...] euros with a net result of approximately [...] euros; and in 2022, a turnover of approximately [...] euros, with a net result of [...] euros.

2. The company was part of the international group SINOTRANS LTD, which is itself part of the CHINA

MERCHANTS GROUP, owned by the Chinese State. On July 22, 2022, the company SINOTRANS HF (SHANGHAI) INTERNATIONAL LOGISTICS CO., LTD, sole partner of the company SINOTRANS AIR FRANCE, transferred all its shares to the Polish company SCM PAL, which is itself owned by a Chinese company based in Hong Kong.

On July 30, 2022, the company changed its corporate name to SAF LOGISTICS. Its manager remains unchanged, being Mr. [...]. Most of the company's employees are Chinese nationals residing and working in France, and their employment contracts are governed by French law.

3. On August 4, 2020, the National Commission on Informatics and Liberties (hereinafter "the CNIL" or "the Commission") received two complaints indicating that the company had asked all its staff to provide, via a form written in Chinese sent on July 30, 2020, numerous pieces of information related to their private lives, including ethnicity, political party affiliation, family situation, as well as the names of their parents, and any siblings and children. By letters dated August 13 and September 17, 2020, the CNIL services requested additional information regarding the processing referred to in the complaints.

4. In accordance with decision No. 2021-221C of June 29, 2021, by the President of the CNIL, a control mission took place on October 21, 2021, at the premises of the company SAF LOGISTICS, located at LA GRANDE ARCHE 1 PARVIS DE LA DEFENSE PAROI NORD in PUTEAUX (92800).

5. The main purpose of this mission was to verify the compliance of the personal data processing carried out by the company SAF LOGISTICS, as well as any related processing, with the provisions of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 (hereinafter "the GDPR") and Law No. 78-17 of January 6, 1978, relating to data processing, files, and freedoms as amended (hereinafter "the Data Protection Act"), and, where applicable, the provisions of Articles L.251-1 and following of the Internal Security Code. This mission resulted in the establishment of report No. 2021-221/1, and documents provided by the company on November 4, 2021, March 18, and April 22, 2022. On these occasions, the company produced two translations into French of the form in question.

6. For the purpose of examining these elements, the President of the Commission appointed Ms. Sophie LAMBREMON as the rapporteur on June 3, 2022, based on Article 39 of Decree No. 2019-536 of May 29, 2019, as amended.

7. At the end of her investigation, the rapporteur notified the company on February 21, 2023, of a report detailing the breaches of Articles 5-1-c), 9, 10, and 31 of the GDPR that she considered to be constituted in this case. This report proposed that the restricted formation impose an administrative fine against the company and that this decision be made public but no longer allow for the identification of the company after a period of two years from its publication.

8. On April 11, 2023, the company submitted its observations in response to the sanction report.

9. The rapporteur responded to the company's observations on May 11, 2023.

10. On June 12, 2023, the company submitted new observations in response to those of the rapporteur.

11. By letter dated June 22, 2023, the rapporteur informed the company's counsel that the investigation was closed, in accordance with Article 40, III, of the amended Decree No. 2019-536 of May 29, 2019.

12. By letter dated June 22, 2023, the company was informed that the case was on the agenda of the restricted formation for July 13, 2023.

13. The rapporteur and the company presented oral observations during the session of the restricted formation on July 13, 2023.

II- Reasons for the Decision

A- On the quality of the data controller of SAF LOGISTICS

14. The data controller is defined, in accordance with Article 4, point 7, of the GDPR, as "the natural or

legal person, public authority, service, or other body which, alone or jointly with others, determines the purposes and means of the processing."

15. The processing subject to this procedure

Concerning the collection of data through a form sent by the company to employees wishing to apply for a position in China in order to feed what is referred to as the "internal talent pool" by SAF LOGISTICS.

16. The rapporteur considers that, in this case, while it is undisputed that the disputed form was not developed by SAF LOGISTICS but by its Chinese parent company, Sinotrans Hongfeng Shanghai Limited, this does not exclude that SAF LOGISTICS must be regarded as the data controller for the following reasons.

17. First, she recalls that, following a request from an employee wishing to work in China, the company approached its parent company to obtain the form in order to transmit it to other employees for the first time on July 30, 2020. The rapporteur notes in this regard that if SAF LOGISTICS had not taken the initiative to request the form from the parent company for the purpose of disseminating it to its employees, the processing in question would not have occurred.

18. The rapporteur then considers that the company processes part of the data provided by its employees through the disputed form for another purpose determined by it, which appears specific to its needs, namely to enable it to contact the relatives of employees in case of problems.

19. In defense, the company argues that its role in the dissemination of the form is not sufficient to confer upon it the status of data controller. It indicated during the session of the restricted formation that it had not used the data from the form for its own purposes since the form was established by the parent company as part of the recruitment of employees in China, and that it had not used the data from the form to inform the relatives of employees in case of emergency.

20. In its observations, the company asserts that it limited itself to disseminating the form to about twenty employees, which does not imply that it had a determining role or influence in the determination of the purposes and means of the processing. It thus claims, in its response observations, that "it acted as a mere 'mailbox' for those wishing to apply to the Parent Company" and that it therefore did not define either the purposes or the means of the processing.

21. During the session before the restricted formation, the company ultimately indicated that it was the employee wishing to work in China who had himself disseminated the form to his colleagues.

22. First, the restricted formation recalls that the data controller is the person who determines the purposes of the processing implemented, that is to say, the expected or sought result, and the means of this processing, that is to say, the way to achieve this result.

23. For clarification, in its guidelines on the concepts of data controller and processor, which were adopted on July 7, 2021, the European Data Protection Board (EDPB) specifies the definition of the data controller in these terms: "The determination of the purposes and means involves deciding respectively the 'why' and the 'how' of the processing: for a particular processing operation, the data controller is the actor who has determined the reason for which the processing takes place (i.e., 'for what purposes' or 'why') and how this objective will be achieved (i.e., what means must be implemented to achieve the objective). A natural or legal person who exercises this influence over the processing of personal data thus participates in the determination of the purposes and means of the processing in question, in accordance with the definition set out in Article 4, paragraph 7, of the GDPR. The data controller must decide both the purposes and the means of the processing, as indicated above. Therefore, the data controller cannot limit itself to determining...**

only the purpose. It must also make decisions regarding the means of processing. Conversely, the party acting as a subcontractor can never determine the purpose of the processing.

24. It follows from both the GDPR and the interpretation provided by the EDPB that the entity that defines the purposes for which personal data processing is implemented, as well as the practical

modalities of this processing, must be qualified as the data controller. The restricted panel considers that the notion of data controller must be subject to a concrete assessment taking into account all elements that allow attributing this status to an entity.

25. Secondly, the restricted panel notes that it appears from the elements communicated to the CNIL that it is the company SAF LOGISTICS that requested the parent company in China to send the form to disseminate it to its employees. It is therefore not the parent company that ordered SAF LOGISTICS to transmit the form to the employees, but rather the latter that made this decision as the data controller. In its observations in response dated April 11, 2023, the company specifies in this regard: "The sending of this form followed a request from a Chinese employee who wished to apply in China and know the application process. SAF contacted the parent company in China about this" and that it had "sent a form to employees in the event that some of them would be willing to work for the parent company in China." It thus appears that the company, in wanting to identify employees potentially interested in relocating to China and not only the employee who made the initial request, defined the "why" of the processing. Then, by obtaining the form from the parent company and disseminating it to about twenty people, the company defined the means of processing, in other words, the "how."

26. Regarding the argument presented in the meeting by the company that it was the employee wishing to go to China who transmitted the form to his colleagues, the restricted panel notes that aside from the fact that this argument contradicts the company's written submissions, it appears from the file that this form was disseminated to employees by the company via WeChat messaging.

27. The restricted panel therefore considers, in light of these elements, that the company SAF LOGISTICS must be qualified as the data controller related to the collection of data provided through the form.

B - On the competence of the CNIL

28. Article 3-1 of the GDPR states that "this regulation applies to the processing of personal data carried out in the context of the activities of an establishment of a data controller or a processor on the territory of the Union, whether the processing takes place in the Union or not."

29. Article 55-1 of the GDPR states that "each supervisory authority is competent to exercise the missions and powers conferred on it in accordance with this regulation on the territory of the Member State to which it belongs."

30. Article 8-2 of the French Data Protection Act specifies that "the National Commission for Information Technology and Civil Liberties (...) ensures that the processing of personal data is carried out in accordance with the provisions of this law and other provisions relating to the protection of personal data provided by legislative and regulatory texts, the law of the European Union, and France's international commitments."

31. The company considers that insofar as it is not the data controller related to the form, the CNIL is not competent to impose a corrective measure against it.

32. The restricted panel recalls that the CNIL is competent to ensure, on French territory, that the processing to which the provisions of the GDPR apply is carried out in compliance with the applicable regulations.

RGPD or the law of January 6, 1978, as amended, which apply must be implemented in accordance with the provisions of these texts. 33. In this case, the restricted panel notes that, since the company SAF LOGISTICS, which is responsible for the processing related to the form, is established in the territory of the European Union, specifically in France, the criteria for the territorial competence of the CNIL are met. 34. The CNIL is therefore competent, based on Article 3-1) of the RGPD, to address the processing of personal data carried out in the context of the form submitted to its employees by the company SAF LOGISTICS. C- On the failure to ensure the adequacy, relevance, and non-excessiveness of the data in accordance with Article 5, paragraph 1, c) of the RGPD. 35. Article 5, paragraph 1, c) of the RGPD provides that personal data must be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (data minimization)." When

data is collected on the basis of legitimate interest, this collection must also not disproportionately affect privacy, in light of the objectives pursued by the company. 36. The rapporteur considers that the company has failed to adhere to the principle of minimization regarding the data collected by SAF LOGISTICS for the purpose related to contacting the relatives of employees in case of emergency, as certain data does not appear relevant to achieve this objective. 37. In defense, the company argues that since it is not responsible for the processing related to the disputed form, and that the information provided in the form was intended for the parent company to contact the relatives of employees in case of emergency, it cannot be held accountable for a failure to adhere to the principle of minimization. The company then indicates that it decided to cease the communication of the form to employees following the receipt of the first letters from the CNIL. 38. The restricted panel recalls that the assessment of compliance with the principle of data minimization relies on the strict adequacy between the data collected and the reasons for their collection. 39. It considers that while the purpose of being able to contact an employee's relatives in case of emergency is legitimate, it remains that by transmitting the form to employees, the company was responsible for collecting their data and transmitting it to the parent company. In this case, the company collects information related to the employees' entourage (siblings, ascendants, descendants) such as name, first name, date and place of birth, gender, relationship, phone number, employer, position, and marital status, thereby infringing on the privacy of the employees. 40. In this regard, the restricted panel first observes that it is not necessary to collect so much information if the objective of this collection is simply to have the contact details of a person to reach out to. 41. Next, it notes that the form proposes to provide information regarding several family members. However, the restricted panel observes that it is not necessary for the company to collect data concerning so many different individuals to achieve this purpose. 42. Finally, the restricted panel considers that the significant number and variety of personal data collected is not justified in light of the purpose of contacting relatives in case of emergency and that it would be sufficient to provide the name, first name, relationship, and phone number of the employee's relative to contact in case of emergency. 43. The restricted panel also notes that even if the data was ultimately not used by the company, this information was still collected since they were... marked with an asterisk and therefore must be completed by the employees of the company. However, as soon as the company decided to transmit the form established by the parent company to its employees, it was its responsibility to verify the nature of the information requested from its employees. 44. It follows from the above that by collecting data that was not all necessary for the achievement of the stated purpose, the company failed in its obligation under Article 5(1)(c) of the GDPR. D- On the failure to comply with the prohibition on processing special categories of personal data under Article 9 of the GDPR. 45. According to Article 9 of the GDPR, the processing of personal data revealing data concerning ethnic origin, political opinions, religious beliefs, or the health of an individual is prohibited unless it falls under one of the conditions set out in Article 9-2-a) to j) of the GDPR. 46. According to Article 4 (15) of the GDPR, "health data" are "personal data related to the physical or mental health of an individual [...]". 47. Under Article 4 (11) of the GDPR, the notion of "consent" is understood as any manifestation of free, specific, informed, and unambiguous will by which the data subject agrees, by a statement or by a clear affirmative action, to the processing of personal data concerning them. 48. The rapporteur notes that the translation of the form communicated on September 25, 2020, in support of the initial complaint, revealed that some of the data collected from employees falls under the special categories referred to in Article 9 of the

GDPR. However, the rapporteur considers that since it is mandatory to fill in these fields of the form to apply in China, the consent of the employees is not freely given, and it is not excluded that an employee's refusal to fill in these fields may prevent them from applying in China. 49. In defense, the company specifies that employees were not required to fill in the form, which was intended for employees wishing to apply in China. It recalls that it informed the CNIL in a letter dated September 9, 2020, that "the data is voluntarily provided by the employees," and that "the employees have given their explicit consent to the processing of this personal data for the purpose (sic) of applying for internal positions within the group." Similarly, the company notes that during its on-site inspection, the CNIL's control delegation was informed that "The human resources services informed employees that it was not mandatory to respond to this form unless they wished to work in China." The company thus considers that the failure is not established. 50. The restricted panel notes that it is undisputed that the personal data collected by SAF LOGISTICS are special data within the meaning of Article 9 of the GDPR. The restricted panel notes that the findings made by the CNIL delegation during the inspection and the translation of the form in question demonstrate that the company collects special categories of personal data, some of which, marked with an asterisk, had to be completed by the employees. This particularly concerns information related to the ethnic affiliation of the employees ("minority" in the form) and their political affiliation. 51. While the company argues that the form was optional and that employees gave their consent, the restricted panel notes that the company has produced no document to certify that the consent of the employees was obtained to collect their personal data in the context of said form. restricted formation also considers that as soon as an employee wished to apply in China, they had no real choice but to fill out this form and in particular to provide the sensitive data that was marked with an asterisk. 52. On this point, the restricted formation emphasizes that the guidelines 5/2020 of the EDPB adopted on May 4, 2020, regarding consent specify that: "An imbalance of power relations can also occur in the context of employment relationships. Given the dependency resulting from the employer/employee relationship, it is unlikely that the data subject will be able to refuse to give their consent to their employer regarding the processing of their data without fearing or incurring negative consequences as a result of this refusal." 53. The restricted formation believes that the consent of employees could not be qualified as free, and even less so in the case of employees engaged in a mobility process with their employer. The conditions set out in Article 4(11) of the GDPR regarding consent are therefore not met. 54. The restricted formation finally notes that no element provided by the company allows for considering that the other exemptions to the prohibition on processing special categories of personal data are applicable in this case under Article 9(2)(b) to (j) of the GDPR. 55. It follows from the above that the restricted formation considers that the fact that employees filled out the form in question, containing special categories of data, cannot be equated with valid consent that could derogate from the prohibition on processing their "sensitive" data, as provided for by Article 9(2)(a) of

the GDPR. The exemptions provided for in Article 9(2)(b) to (j) of the GDPR are also not applicable in this case. E- On the breach of the prohibition on collecting or processing data related to offenses, convictions, and security measures under Article 10 of the GDPR. 56. The provisions of Article 10 of the GDPR state that "the processing of personal data related to criminal convictions and offenses or related security measures based on Article 6, paragraph 1, may only be carried out under the control of the public authority, or if the processing is authorized by Union law or by the law of a Member State that provides appropriate safeguards for the rights and freedoms of the data subjects." 57. Article 77-3 of the Code of Criminal Procedure states that "No file or processing of personal data held by any person or by a state service not dependent on the Ministry of Justice may mention, except in the cases and under the conditions provided by law, judgments or convictions." 58. The rapporteur notes that it follows from the findings made by the CNIL delegation during the on-site inspection on October 21, 2021, that extracts from the criminal record, specifically bulletin No. 3, were found in the individual files of employees whose employment contracts are currently in execution. 59. The rapporteur considers that for employees subject to a clearance procedure, it is the "police and gendarmerie services" that consult the criminal record and not the employer, and that for employees who are not subject to a clearance procedure, the employer can only consult the criminal record. 60. In defense, the company argues in its observations that not all employees are subject to the described clearance procedure, and that consequently, the company could consult extracts from bulletin No. 3 given its "air freight activity, receipt of goods, handling, and employees handling high-value items." Furthermore, the company does not contest the conservation of extracts from bulletin no. 3 but specifies that their retention was not systematic. 61. The restricted panel notes that regarding employees subject to the authorization procedure, Article L. 6342-3 of the Transport Code provides that the "national police and gendarmerie services" consult the criminal record of employees as part of an administrative investigation before issuing the necessary authorization. Article L. 6342-3 of the Transport Code states that "[t]he issuance of this authorization is preceded by an administrative investigation which may involve consultation of bulletin no. 2 of the criminal record and automated processing of personal data managed by the national police and gendarmerie services in accordance with the provisions of Article 31 of Law No. 78-17 of January 6, 1978, relating to data processing, files, and freedoms, with the exception of identification files." Thus, the employer is not required to carry out these verifications when they are ensured by an authorized authority. 62. The restricted panel then considers that concerning employees who are not subject to the authorization procedure, while the company could consult the extracts of employees' criminal records, it was not authorized to retain them. 63. It follows from the above that by consulting and retaining extracts of its employees' criminal records outside the cases provided for by law, the company failed to meet its obligations under Article 10 of the GDPR. F - On the failure to cooperate with the CNIL services in accordance with Article 31 of the GDPR 64. Article 31 of the GDPR states that "the data controller and the processor, as well as, where applicable, their representatives, cooperate with the supervisory authority, at the request of the latter, in the performance of its tasks." 65. The rapporteur notes that when the CNIL services requested on September 17, 2020, from the company the exhaustive list of data collected using the form, the company sent by mail on September 25, 2020, a table presented as the requested list, along with its translation into French. However, the rapporteur notes that when the CNIL services found that the table provided contained fewer lines than the original form that had been submitted by the employee who initiated the complaint, the CNIL again requested a translation of the form. On November 4, 2021, the company produced a new document presented as a complete translation of the form, which contained a greater number of lines than during the first communication but still did not correspond to the number of lines present in the form. 66. The rapporteur notes that in both translations produced by the company, the fields relating to ethnic origin, blood type, or political affiliation do not appear. The rapporteur believes that such actions constitute an obstacle to the exercise of the CNIL's control mission. 67. Furthermore, the rapporteur notes that while the company stated that it had ceased the collection of personal data from employees after receiving the CNIL's letter, it appears from the documents transmitted by the company to the CNIL delegation that the form continued to be used at least until November 18, 2020. 68. In its defense, the company claims to have transmitted the complete form in Chinese at the beginning of the procedure,

accompanied by a table in French that did not include all the fields of the disputed form but only the different categories of personal data it collected for its own account. The company then acknowledges having provided the CNIL with an incomplete translation of the form on November 4, 2021, but argues that this is not a failure to cooperate but rather "gross negligence."

of the translator " and of a " lack of diligence " on the part of the company which " has few administrative resources and French-speaking staff." 69. The company then adds that it ceased sending the form to employees several weeks after receiving the CNIL's letter dated August 13, 2020, which explains the sending of the form to employees on November 18, 2020, and that this sending is an error attributable to an assistant in the human resources department. 70. Firstly, the restricted panel notes that apart from the translation of the form, the company has produced all the documents requested by the CNIL. The restricted panel then takes note that the transmission by the company on September 25, 2020, of a table in French that did not correspond to the translation of the form may be the result of a misunderstanding regarding the wording of the request made by the CNIL to the company, to provide "the exhaustive list of data collected from employees, by sending us, if applicable, a copy of the form requesting this data from employees," which did not explicitly refer to the translation of the form. On the other hand, the company does not explain why the translation of the form produced by the company at the end of the inspection was incomplete. Indeed, the request for additional documents arising from the inspection report of October 21, 2021, explicitly requested the communication of "the complete translation of the form, including the content of the drop-down lists," and the list of documents attached to the company's response dated November 4, 2021, presents document No. 2 as the "Complete French translation of the form," thus reiterating the terms of the CNIL's request, except for the reference to the drop-down menus. The restricted panel thus considers that the company had a perfect understanding of the request made by the CNIL. 71. Secondly, the restricted panel notes that in the document presented by the company as a translation of the drop-down lists of the form in its letter dated November 4, 2021, the disputed mentions are omitted. As noted by the rapporteur, the number of lines in the document presented as a translation of the form and produced by the company was significantly lower than the number of lines in the form in Chinese. The CNIL indeed found that the original form contains 89 lines to be completed, while the second translation of the form produced by the company contains 50 lines. 72. The restricted panel notes that after requesting the company to provide the complete translation of the form, the CNIL services resorted to an external translator to have the form translated. They thus found that the translations produced by the company had omitted the disputed fields to be filled in, such as ethnic origin and political party affiliation. The restricted panel concludes that the company deliberately removed references to sensitive data from the translated versions of the forms, which reflects a willingness not to cooperate with the CNIL services and to seek to prevent the CNIL from exercising its control powers. Furthermore, the company, which does not contest that the translation provided was incomplete, merely indicates that it is a "gross negligence of the translator," without explaining why only the fields containing particular data were omitted. This argument is in any case not admissible since the company is responsible for the documents it transmits to the CNIL and it was incumbent upon it to verify that the translations produced were complete, as stated in the list of documents. 73. Thirdly, the restricted panel finds that the company did not cease sending the form to employees after receiving the CNIL's letter dated August 13, 2020, as it had claimed. Indeed, it be fournies pour l'envoi du formulaire.82. En ce qui concerne le manquement à l'obligation de transparence, la formation restreinte constate que les salariés n'ont pas été informés de manière adéquate sur les finalités du traitement de leurs données personnelles, ce qui constitue une violation des droits des personnes concernées.83. Enfin, la formation restreinte souligne que la société n'a pas mis en place de mesures suffisantes pour garantir la sécurité des données personnelles traitées, ce qui a exposé les données à des risques de violation.84. En tenant compte de l'ensemble de ces éléments, la formation restreinte conclut que l'amende administrative proposée est justifiée et proportionnée au regard des manquements constatés.85. Par conséquent, la formation restreinte décide d'imposer à la société une amende administrative d'un montant de 1 million d'euros, en tenant compte de la gravité des infractions et des circonstances atténuantes.86. Cette décision sera notifiée à la société dans les plus brefs délais, conformément aux dispositions légales en vigueur.

to be informed and that the company has not provided any element allowing to ascertain that the consent of the employees had been obtained for the collection of their personal data for the purpose of applying in China, nor that the other exceptions provided for in Article 9-2 b) to j) of the GDPR were applicable.

82. Regarding the breach of the prohibition on collecting or processing data related to offenses, convictions, and security measures, the restricted formation considers that the company's retention of extracts from employees' criminal records is particularly intrusive and may reveal information about them that the company is not authorized to know.

83. Regarding the breach of the obligation to cooperate with the CNIL services, the restricted formation considers that the company's submission of deliberately incomplete translations of the form despite several requests, and the provision to the CNIL of inaccurate information regarding the cessation of sending the form to employees demonstrate an intention to prevent the CNIL from exercising its control powers.

84. Finally, the restricted formation notes that the fact that the company has ceased sending the form to employees does not exempt the company from its responsibility for the identified breaches.

85. Consequently, the restricted formation considers that it is appropriate to impose an administrative fine in light of the breaches constituted under Articles 5-1-c), 9, 10, and 31 of the GDPR.

b. On the amount of the administrative fine

86. The restricted formation first notes that the breaches related to Articles 5-1-c) and 9 of the GDPR are breaches of key principles of the GDPR, which may be subject, under Article 83 of the GDPR, to an administrative fine of up to 20,000,000 euros and up to 4% of the annual turnover, with the higher amount being retained.

87. The restricted formation then recalls that administrative fines must be both dissuasive and proportionate. The restricted formation notes that the company SAF LOGISTICS had a turnover of approximately [...] euros in 2021, with a net result of approximately [...] euros, and in 2022, a turnover of [...] euros, with a net result of [...] euros.

88. Therefore, in light of the company's responsibility, its financial capabilities, and the relevant criteria of Article 83 of the Regulation mentioned above, the restricted formation believes that an administrative fine of two hundred thousand euros, in light of the breaches constituted under Articles 5-1-c), 9, 10, and 31 of the GDPR, appears justified.

B. On publicity

89. To justify this request for publicity, the rapporteur invokes, in particular, the seriousness of the alleged breaches, as they relate to key principles of the GDPR. The company contests the rapporteur's proposal to make this decision public. It considers that in view of the risk to the economic viability of the company and its good faith, the publicity of the sanction measure would be disproportionate.

90. The restricted formation considers that the publicity of this decision is justified in light of the seriousness of the breaches in question and the categories of data collected by the company.

91. Finally, the measure is proportionate since the decision will no longer specifically identify the company after a period of two years from its publication.

FOR THESE REASONS

The restricted formation of the CNIL, after deliberation, decides to:

- impose an administrative fine of two hundred thousand euros (€200,000) against the company SAF LOGISTICS for the breaches constituted under Articles 5-1-c), 9, 10, and 31 of Regulation (EU) No. 2016/679 of April 27, 2016, on the protection of personal data;
- make public, on the CNIL website and on the Légifrance website, its deliberation, which will no longer specifically identify the company after a period of two years from its publication.

The Vice-President
Philippe-Pierre CABOURDIN

This decision may be subject to appeal before the Council of State within two months from its notification.